



Bill Number: S.B. 1043

Rogers Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Allows a state agency to enter into an agreement with a virtual currency service provider, rather than a cryptocurrency service provider.
2. Replaces the definition of *cryptocurrency* with a definition of *virtual currency*.
3. Defines *stablecoin*.
4. Makes conforming changes.

ROGERS FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1043
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 35, chapter 1, article 3, Arizona Revised
3 Statutes, is amended by adding section 35-156, to read:

4 35-156. Method of payment; virtual currency; agreement;
5 definitions

6 A. A STATE AGENCY MAY ENTER INTO AN AGREEMENT WITH A
7 [CRYPTOCURRENCY] [VIRTUAL CURRENCY] SERVICE PROVIDER TO PROVIDE A METHOD
8 TO ACCEPT [CRYPTOCURRENCY] [VIRTUAL CURRENCY] AS A PAYMENT METHOD OF
9 FINES, CIVIL PENALTIES OR OTHER PENALTIES, RENT, RATES, TAXES, FEES,
10 CHARGES, REVENUE, FINANCIAL OBLIGATIONS AND SPECIAL ASSESSMENTS TO PAY ANY
11 AMOUNT DUE TO THAT AGENCY OR THIS STATE.

12 B. THE AGREEMENT SHALL:

13 1. GOVERN THE TERMS AND CONDITIONS ON WHICH [CRYPTOCURRENCY]
14 [VIRTUAL CURRENCY] AS A MEANS OF PAYMENT CAN BE ACCEPTED OR DECLINED.

15 2. PROVIDE THE MANNER IN AND CONDITIONS ON WHICH A [CRYPTOCURRENCY]
16 [VIRTUAL CURRENCY] SERVICE PROVIDER SHALL PAY THIS STATE BY MEANS OF
17 [CRYPTOCURRENCY] [VIRTUAL CURRENCY] OR UNITED STATES DOLLARS PURSUANT TO
18 THE AGREEMENT.

19 C. A STATE AGENCY THAT HAS ENTERED INTO AN AGREEMENT WITH A
20 [CRYPTOCURRENCY] [VIRTUAL CURRENCY] SERVICE PROVIDER AS PROVIDED BY THIS
21 SECTION MAY ACCEPT [CRYPTOCURRENCY] [VIRTUAL CURRENCY] AS A METHOD OF
22 PAYMENT FOR FINES, CIVIL PENALTIES OR OTHER PENALTIES, RENT, RATES, TAXES,
23 FEES, CHARGES, REVENUE, FINANCIAL OBLIGATIONS AND SPECIAL ASSESSMENTS TO
24 PAY ANY AMOUNT DUE TO THAT AGENCY OR THIS STATE.

25 D. A STATE AGENCY MAY PAY ANY SERVICE FEES SPECIFIED IN THE
26 AGREEMENT FOR THE [CRYPTOCURRENCY] [VIRTUAL CURRENCY] TRANSACTION OR MAY
27 REQUIRE A PERSON THAT PAYS WITH [CRYPTOCURRENCY] [VIRTUAL CURRENCY] TO PAY
28 THE SERVICE FEES ASSOCIATED WITH THE [CRYPTOCURRENCY] [VIRTUAL CURRENCY]
29 TRANSACTION.

1 E. A PERSON THAT PAYS WITH [CRYPTOCURRENCY] [VIRTUAL CURRENCY] IS
2 LIABLE FOR THE PAYMENT AND ALL INTEREST AND PENALTIES UNTIL THE STATE
3 AGENCY HAS RECEIVED FINAL AND UNCONDITIONAL PAYMENT OF THE FULL AMOUNT DUE
4 FROM THE [CRYPTOCURRENCY] [VIRTUAL CURRENCY] SERVICE PROVIDER FOR THE
5 [CRYPTOCURRENCY] [VIRTUAL CURRENCY] TRANSACTION.

6 F. FOR THE PURPOSES OF THIS SECTION:

7 ~~[1. "CRYPTOCURRENCY" MEANS ANY FORM OF DIGITAL CURRENCY IN WHICH
8 ENCRYPTION TECHNIQUES ARE USED TO REGULATE THE GENERATION OF UNITS OF
9 CURRENCY AND VERIFY THE TRANSFER OF MONIES, OPERATING INDEPENDENTLY OF A
10 CENTRAL BANK, INCLUDING BITCOIN, ETHEREUM, LITECOIN AND BITCOIN CASH.]~~

11 [1. "VIRTUAL CURRENCY" MEANS A DIGITAL REPRESENTATION OF VALUE THAT
12 FUNCTIONS AS A MEDIUM OF EXCHANGE, A UNIT OF ACCOUNT AND A STORE OF VALUE,
13 INCLUDING BITCOIN, ETHEREUM, XRP, LITECOIN AND BITCOIN CASH, AND INCLUDES
14 STABLECOINS. VIRTUAL CURRENCY DOES NOT INCLUDE LEGAL TENDER ISSUED BY THE
15 UNITED STATES OR A FOREIGN GOVERNMENT.]

16 2. "[CRYPTOCURRENCY] [VIRTUAL CURRENCY] SERVICE PROVIDER" MEANS A
17 PERSON OR ENTITY WITH DEMONSTRATED EXPERIENCE CONVERTING ANY FORM OF
18 [CRYPTOCURRENCY] [VIRTUAL CURRENCY], INCLUDING BITCOIN, ETHEREUM, [XRP,]
19 LITECOIN AND BITCOIN CASH, TO LEGAL TENDER.

20 [3. "STABLECOIN" MEANS A PAYMENT STABLECOIN AS DEFINED IN THE
21 GUIDING AND ESTABLISHING NATIONAL INNOVATION FOR U.S. STABLECOINS (GENIUS)
22 ACT OF 2025 (P.L. 119-27) AND THAT IS ISSUED IN COMPLIANCE WITH ALL
23 APPLICABLE FEDERAL LAWS GOVERNING SUCH ISSUANCE.]

24 Sec. 2. Section 42-5018, Arizona Revised Statutes, is amended to
25 read:

26 42-5018. Method of payment

27 A. All remittances of taxes imposed by this article shall be made
28 by bank draft, check, cashier's check, money order, cash or electronic
29 funds transfer to the department, which shall issue receipts therefor to
30 the taxpayers, but no remittance other than cash shall be final discharge
31 of liability for the tax levied by this article until it has been paid in
32 cash to the department.

33 B. IN ADDITION TO THE METHODS DESCRIBED IN SUBSECTION A OF THIS
34 SECTION, THE DEPARTMENT MAY ENTER INTO AN AGREEMENT PURSUANT TO SECTION
35 35-156 TO ACCEPT [CRYPTOCURRENCY] [VIRTUAL CURRENCY] FOR REMITTANCES OF
36 TAXES IMPOSED BY THIS ARTICLE.

37 Sec. 3. Section 43-505, Arizona Revised Statutes, is amended to
38 read:

39 43-505. Tax payments made to department; order of crediting

40 A. The tax and any interest and penalties shall be paid to the
41 department. Remittances may be in the form of EITHER:

42 1. A check payable to the department during such A time and under
43 such regulations as the director may prescribe. If a check is not paid by
44 the bank on which it is drawn, the taxpayer tendering the check ~~shall~~
45 ~~remain~~ IS liable for the payment of the tax and all interest and penalties
46 as if ~~he had~~ THE CHECK WERE not tendered ~~the check~~.

Senate Amendments to S.B. 1043

1 2. IF THE DEPARTMENT ENTERS INTO AN AGREEMENT PURSUANT TO SECTION
2 35-156, [~~CRYPTOCURRENCY~~] [VIRTUAL CURRENCY].

3 B. The department shall credit payments against a taxpayer's unpaid
4 tax liability before crediting payments against any interest or penalties.

5 Sec. 4. Effective date

6 This act is effective from and after December 31, 2026.

7 Enroll and engross to conform

8 Amend title to conform

WENDY ROGERS

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02/24/2026

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